

25NNCV06739 25NNCV06739

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[TENTATIVE] ORDER GRANTING PLAINTIFF'S MOTION TO ENFORCE SETTLEMENT

I. INTRODUCTION

On September 24, 2025, Plaintiff Hakob Ayvazian ("Plaintiff") filed this action against Defendant Kia America, Inc. ("Defendant") arising from alleged defects in Plaintiff's 2022 Kia Forte and asserting claims under the Song-Beverly Consumer Warranty Act.

The parties subsequently participated in mediation and, on January 26, 2026, reached a settlement whereby Defendant agreed to repurchase the subject vehicle for \$24,000, with Plaintiff's attorney's fees and costs to be determined by agreement or motion. Plaintiff executed a corrected standardized settlement and release on March 20, 2026. The repurchase has not yet been completed.

On July 2, 2026, Plaintiff filed the instant motion to enforce the settlement agreement. Defendant filed an opposition on July 21, 2026. Plaintiff filed a reply on July 30, 2026.

II. LEGAL STANDARD

Cal. Code of Civ. Proc. §664.6 provides, in pertinent part, as follows: "If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement."

In hearing a § 664.6 motion, the trial court may receive evidence, determine disputed facts, and enter terms of a settlement agreement as a judgment. (Bowers v. Raymond J. Lucia Companies, Inc. (2012) 206 Cal.App.4th 724, 732.) The Court may also receive oral testimony in addition to declarations. (Kohn v. Jaymar-Ruby, Inc. (1994) 23 Cal.App.4th 1530, 1533.)

The Court may interpret the terms and conditions of the settlement (Fiore v. Alvord (1985) 182 Cal.App.3d 561, 566), but the Court may not create material terms of a settlement, as opposed to deciding what terms the parties themselves have previously agreed upon. (Weddington Productions, Inc. v. Flick (1998) 60 Cal.App.4th 793, 810).

Strict compliance with the statutory requirements is necessary before a court can enforce a settlement agreement under this statute. (Sully-Miller Contracting Co. v. Gledson/Cashman Construction, Inc. (2002) 103 Cal.App.4th 30, 37.) The party seeking to enforce a settlement "must first establish the agreement at issue was set forth 'in a writing signed by the parties' (§

664.6) or was made orally before the court.” (Harris v. Rudin, Richman & Appel (1999) 74 Cal.App.4th 299, 304.)

The settlement must include the signatures of the parties seeking to enforce the agreement, and against whom enforcement is sought. (J.B.B. Investment Partners, Ltd. v. Fair (2014) 232 Cal.App.4th 974, 985.) “[A] writing is signed by a party if it is signed by ... [a]n attorney who represents the party.” (Cal. Civ. Proc. Code § 664.6(b)(2).)

III. ANALYSIS

Enforce settlement

Code of Civil Procedure section 664.6 authorizes the Court to enter judgment on a settlement agreement where the agreement is in writing, signed by the parties, and the Court retains jurisdiction. (Harris v. Rudin, Richman & Appel (1999) 74 Cal.App.4th 299, 305.)

Here, there is no dispute that the parties reached a settlement at mediation on January 26, 2026. The parties agreed that Defendant would repurchase Plaintiff's 2022 Kia Forte for \$24,000, Plaintiff's attorney's fees and costs would be determined by agreement or motion, and the parties would execute the standardized settlement and release containing a section 664.6 stipulation. (Motion, pp. 1–2; Opposition, p. 2.)

Plaintiff executed and returned a standardized release on January 27, 2026. After an error concerning the identification of the subject vehicle was discovered, Plaintiff executed a corrected standardized release and transmitted it to Defendant on March 20, 2026. (Motion, pp. 2–3; Bravo Decl., ¶¶ 4, 6.) Defendant does not dispute the existence of the settlement or its obligation to repurchase the vehicle. (Opposition, p. 2.)

Rather, Defendant contends that Plaintiff prevented completion of the settlement by refusing to provide a W-9 requested in connection with issuance of the settlement payment. After receiving the corrected release, Defendant requested an image of the back of the vehicle title and a W-9 for Plaintiff. Defendant also advised that, in lieu of Plaintiff's W-9, the settlement check could be made payable to Plaintiff's counsel's trust account if counsel provided a W-9. Plaintiff provided the requested title information but declined to provide a W-9 for either Plaintiff or his counsel. (Opposition, p. 3.)

This dispute does not render the underlying settlement unenforceable. Neither party contends that the settlement should be rescinded or that Defendant is relieved of its obligation to complete the agreed-upon repurchase. Rather, the parties' disagreement concerns the documentation necessary to complete performance and the consequences of the resulting delay.

Generally, a defendant manufacturer in a Lemon Law case will request that the plaintiff or their counsel to submit a W-9 prior to issuing payment to satisfy federal tax reporting and backup withholding requirements, thereby protecting the defendant from direct financial liability and penalties under federal law. (26 USCS § 3406; Freis v. Soboroff (2000) 81 Cal. App. 4th 1102.)

The Court finds that the parties entered into a valid and enforceable settlement agreement and GRANTS Plaintiff's motion to enforce the settlement.

Statutory penalty

Plaintiff also seeks a statutory penalty of \$50 per day pursuant to Code of Civil Procedure section 871.27, subdivision (g)(2). (Motion, pp. 4-5.) Although the statute generally requires completion of an agreed-upon repurchase within 30 days of receipt of a signed release, it also requires the consumer to cooperate in good faith with reasonable requests for documentation necessary to complete the restitution. (Code Civ. Proc., § 871.27, subd. (g)(2).)

Here, after Plaintiff transmitted the corrected signed release on March 20, 2026, Defendant requested a W-9 to process the settlement payment. Defendant offered Plaintiff the option of providing his own W-9 or having counsel provide a W-9 so that payment could be issued to counsel's trust account. Defendant requested the W-9 on eight occasions, but Plaintiff refused, asserting that the statute does not expressly require one. (Opposition, pp. 3-4; Reply, pp. 1-2.)

The Court finds Defendant's request for a W-9 reasonable and Plaintiff's refusal to provide it inconsistent with his obligation to cooperate in good faith. The statute does not provide a list of documents constituting "reasonable documentation." Defendant requested the W-9 to facilitate the issuance of the settlement payment. Under these circumstances, the Court finds the W-9 constitutes reasonable documentation necessary to complete the settlement. Because Plaintiff refused to provide the requested documentation, Defendant is not subject to the \$50-per-day penalty.

Thus, Plaintiff's request for statutory penalties is DENIED

IV. CONCLUSION AND ORDER

The Court GRANTS Plaintiffs' Motion to Enforce Settlement. Plaintiff's counsel is ordered to provide his W-9 to Defendants' counsel within 10 days for check issuance.

The Court DENIES Plaintiff's request for the \$50 per day statutory penalty pursuant to Code of Civil Procedure section 871.27, subdivision (g)(2).

Plaintiff is to give notice.

Dated: August 11, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT